



Notification Waiver Determination

Ares (Bolt S.p.A.) – Investment in Plenitude

Acquisition	Bolt S.p.A. (Bolt), a company owned by AC Europe SCSp managed by affiliates of Ares Management LCC (together with its affiliates, managed funds and vehicles, Ares), applied for a notification waiver in respect of its proposed acquisition of joint control over Eni Plenitude S.p.A. Società Benefit (Plenitude) by way of a purchase of shares through the subscription of a capital increase, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 June 2026

Parties to the Acquisition	The acquirer, Bolt, is an Italian joint stock company and investment entity ultimately controlled by funds managed or advised by affiliates of Ares, a global alternative investment manager. Bolt currently holds approximately 20% of the share capital of Plenitude which it acquired from Eni in June 2022. In Australia, Ares' energy interests are held through Windlab Pty Ltd (Windlab), jointly owned with Federation Asset Management. Windlab's portfolio comprises wind development projects in National Electricity Market regions of Queensland, NSW, Victoria, Tasmania and Western Australia (NEM regions), as well as having a development role for one project in Western Australia (which is its only project outside of the NEM). Windlab's activities include the Bungaban project in Queensland (developing project), the Gawara Baya project in North Queensland and the Junction Rivers project in New South Wales. Plenitude is an integrated energy transition company currently solely controlled by Eni S.p.A.. Globally, Plenitude is active in the production of electricity from renewable sources, in the retail sale of electricity and natural gas to both domestic and non-domestic customers, in the electric mobility sector, and in the provision of energy efficiency services. In Australia, Plenitude's activities are limited to utility-scale solar generation on the Northern Territory's Darwin–Katherine Interconnected System (outside the NEM regions). Through wholly-owned Australian subsidiaries, Plenitude owns the Katherine solar farm, the Batchelor solar farm and the Manton Dam solar farm with 45 MWAC contracted to the Northern Territory's government-owned electricity retailer Jacana Energy.
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Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no geographic horizontal overlap between Ares, its portfolio companies and Plenitude in the supply of electricity generation in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act